

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 7/2/26 TIME: 9:00 A.M. DEPT: B CASE NO: FL0002079

PRESIDING: HON. JAMES M. SCHURZ

REPORTER:

CLERK: A. URTON

PETITIONER: ANTONY GRAEME
SCOTT

and

RESPONDENT: ING-CHUAN SHEN

NATURE OF PROCEEDINGS: 1) REQUEST FOR ORDER –CHILD/SPOUSAL SUPPORT
2) ORDER – SHOW CAUSE – FAILURE TO FILE
3) CASE PROGRESS CONFERENCE

RULING

This matter is set for hearing on Petitioner/Father's May 18, 2026, Request for Order (RFO) for (1) guideline child support regarding the parties' shared daughter, Melody (DOB: 12/26/2010), (2) pendente lite spousal support, and (3) a contribution of \$15,000 for Father's attorney's fees and costs. Father further asks that support be ordered retroactive to February 1, 2026, the date when the parties attempted to resolve this matter out-of-court. Father states that Mother refused to agree to preserve retroactivity, requiring Father to file his RFO even though he was unrepresented. With regard to Father's request for attorney's fees, Father's RFO does not provide information regarding his attorney's billing rate, expertise, or why the fees and costs are necessary and reasonable. Following the filing of this RFO, on June 23, 2026, Father retained counsel.

Respondent/Mother filed a Responsive Declaration June 18, 2026. First, Mother agrees to guideline temporary spousal support, with an imputation of minimum wage income to Father, and orders from this Court that Father seek full-time employment as well as a Gavron order. Second, Mother seeks guideline child support to be paid by Father to Mother as Mother has effectively 100% custody of Melody. Third, Mother agrees to a contribution for attorney's fees of \$15,000. Mother requests retroactivity be limited to the date of filing.

Father's May 18, 2026, Income and Expense Declaration reports zero W2 income and \$1,164 in self-employment income. Father asserts that he is paying \$5,383 per month for their daughter to attend boarding school in Japan. Father last filed taxes in 2024, jointly with Mother, and their 2024 tax return shows Adjusted Gross Income of \$127,274 ($\div 12 =$ \$10,606 a month). Father states that he was not working, and graduated from his Masters Program in 2024, implying that the 2024 income was all earned by Mother.

Father states that he visits with their daughter occasionally, when Mother allows it. He reports that the minor child is currently in California (see Father Reply, filed June 25, 2026, 2:23-27.) There is no order and no custody and visitation RFO pending. Father asks the Court to apply a 50% timeshare since the child is in boarding school in Japan (Mother lives in Taiwan and Father lives in Marin.)

Mother's June 18, 2026, Income and Expense Declaration does not report on W2 income and reports \$2,302 in Dividends/interest income and a loss of -\$1,442 in rental income. Mother reports \$17,195 in expenses and zero debt. Mother asserts that she pays \$6,448 per month for their daughter to attend boarding school in Japan and pays for all expenses associated with their daughter Melody. Mother also reports she received a total of \$88,880 in "two non-income cash gifts from [her] mother" in 2025. (See Mother's June 18, 2026, Income and Expense Declaration, page 2, Item 8.)

Mother states that Father has no custodial time with the child, however she reported that in 2026, Melody spent about 2.5 weeks over the Christmas/New Year holiday in Marin. The Court calculated that as a total of 18 half days (there is no indication of overnight visits), or 9 days total for a 2% timeshare.

In his RFO and Income and Expense Declaration, Father requests that the Court calculate guideline spousal support based on \$20,000 per month income for Mother. Father's June 25, 2026, Support Calculations attributes \$17,153 monthly income to Mother, based on her expenses.

The Court needs more information from Mother regarding how she is paying her expenses.

In addition, the Court needs more information regarding how each of these parties are meeting their expenses, and regarding the timeshare, before it can determine guideline pendente lite spousal support and guideline child support.

Father also requests Mother pay for his travel expenses to see their daughter, but he has not provided any information about those expenses.

Agreement regarding Contribution to Attorney's Fees

With regards to attorney fees, Mother reports on her Income and Expense Declaration that she has assets valued at over \$5,287,533 of which \$183,443 is in cash or checking account. Father reported \$614,635 in assets of which \$3,121 is in cash or checking account.

The Court makes no findings as to the necessity for ongoing contributions for attorney's fees. But the Court notes that there is agreement between the parties as to the initial contribution of \$15,000. Accordingly, Mother is to pay Father \$15,000 towards attorney's fees and costs.

Continuance for Calculation of Child Support/Pendente Lite Spousal Support

More information about the parties' financial circumstances is needed. The issues of child support and pendente lite spousal support are continued. The parties are ordered to provide

information regarding their income in 2025 and to date in 2026, and their access to funds to pay expenses.

The matter is continued to August 13, 2026. By July 23, 2026, each party is ordered to provide updated information regarding income and gifts received in 2025 and 2026 to date, as well as a detailed explanation of how each party is paying for their expenses. By August 6, 2026, each party is ordered to provide a declaration regarding the dates and times that Father has visited with the minor child, in 2025 and in 2026 to date.

Counsel for Father is ordered to prepare the formal Findings and Order After Hearing.

Parties must comply with Marin County Superior Court Local Rules, Rule 7.12(B), (C), which provide that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 7.12(C), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department B. For routine appearances, the parties may access Department B for video conference via a link on the court website. Litigants in the virtual courtroom are required to leave the video screen on and wait for your case to be called.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing. If the connection is inadequate, the Court may proceed with the hearing in the party's absence.

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 7/2/26 TIME: 9:00 A.M. DEPT: B CASE NO: FL0002533

PRESIDING: HON. JAMES M. SCHURZ

REPORTER:

CLERK: A. URTON

PETITIONER: ALEXANDER VAZ

and

RESPONDENT: EVA VAZ

NATURE OF PROCEEDINGS: REQUEST FOR ORDER –SCHOOL SELECTION;
COMMUNITY FUNDS

RULING

This matter is before the Court on Respondent/Mother's June 10, 2026, Request for Order (RFO). Mother's RFO requests (1) school selection for the parties' children, Lachlan (DOB: 11/12/2019) and Tate (DOB: 03/03/2021), (2) an advance of community funds, and (3) orders restricting the use of community funds under Petitioner/Father's sole control. Mother's RFO was brought as an *ex parte* request seeking shortened time for hearing. Father opposed orders pending a hearing but agreed to shortened time.

Specifically, Mother seeks (1) an order that Father pay for Marin Montessori for the boys, (2) an order that Father obtain Mother's consent before using any community funds under his control, (3) an order that Father maintain the joint account at the level of \$5,000, and (4) an advance to Mother from community funds of \$33,782.

School Selection - Marin Montessori – (MMS)

Mother states that Tate is in his final P3 (kindergarten) year at MMS and that Lachlan will be moving up to elementary school with his friends. School commences on August 25 for Lachlan and August 27 for Tate. Mother describes that the boys are excited to move up with their friends who also attend MMS. Mother is involved at MMS, and she will be a "room parent" in Tate's class next year.

Mother states Father wants the children to switch to public school, although he is amenable to them continuing at MMS if Mother wishes to pay for it. Mother is concerned about transitioning the boys to public school during the period of their parents' separation. Mother borrowed money from her partner to pay the deposit and the first month's tuition to preserve the boys' places at MMS. Mother seeks an order that Father pay for MMS due to his superior financial situation and access to funds. In her Reply, Mother states that Father could advance the funds using a credit card until he receives his expected annual bonus in December.